

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                  |                                            |                                                                                                                                                                                                                                  |
|---------------------------------------------------|----------------------------------------------------------------------------------|--------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>John Butler                      | Team:<br>Squad #05                                                               | CCRB Case #:<br>201600945                  | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 02/06/2016 10:30 PM | Location of Incident:<br>Washington Avenue and Prospect Place and over the phone | 18 Mo. SOL<br>8/6/2017                     | Precinct:<br>77                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Sat, 02/06/2016 11:22 AM | CV Reported At:<br>CCRB                                                          | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Sat, 02/06/2016 11:22 AM                                                                                                                                                                           |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Umar Khitab   | 20552  | 952929 | 077 PCT |
| 2. POM Robert Brower | 09982  | 956460 | 077 PCT |
| 3. DT3 Joseph Hickey | 04177  | 928480 | 077 DET |

| Witness Officer(s)          | Shield No | Tax No | Cmd Name |
|-----------------------------|-----------|--------|----------|
| 1. POM Tahir Malik          | 06148     | 957799 | 077 PCT  |
| 2. POM Marcin Pawezka       | 12040     | 957014 | 077 PCT  |
| 3. SGT Widler Lucas         | 1671      | 938889 | 077 PCT  |
| 4. POF Melanie Mahabirsingh | 13321     | 955111 | 077 PCT  |
| 5. DTS Robert Lynch         | 07218     | 923452 | 077 PCT  |

| Officer(s)            | Allegation                                                                                                                      | Investigator Recommendation |
|-----------------------|---------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Umar Khitab   | Abuse: At Washington Avenue and Prospect Place in Brooklyn, Police Officer Umar Khitab threatened to arrest § 87(2)(b)          | A . Unsubstantiated         |
| B . POM Umar Khitab   | Force: At Washington Avenue and Prospect Place in Brooklyn, Police Officer Umar Khitab used physical force against § 87(2)(b)   | B . Unfounded               |
| C . POM Robert Brower | Force: At Washington Avenue and Prospect Place in Brooklyn, Police Officer Robert Brower used physical force against § 87(2)(b) | C . Unfounded               |
| D . DT3 Joseph Hickey | Discourtesy: Over the phone, Detective Joseph Hickey spoke discourteously to § 87(2)(b)                                         | D . Unsubstantiated         |

### Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the Call Processing System on behalf of herself and her mother, § 87(2)(b) on February 6, 2016.

On February 6, 2016, at approximately 10:30 p.m., PO Umar Khitab; PO Robert Brower; PO Tahir Malik; and PO Marcin Pawezka of the 77<sup>th</sup> Precinct responded to a 911 call of a larceny in progress at 661 Washington Avenue in Brooklyn. § 87(2)(b) who was the 911 caller, pointed out § 87(2)(b) who stood on the corner of Washington Avenue and Prospect Place, and she alleged that § 87(2)(b) stole her identity. § 87(2)(b) asked the officers to arrest § 87(2)(b) but the officers refused to do so. PO Khitab allegedly told § 87(2)(b) that he would arrest her if she moved toward his patrol car (**Allegation A**). PO Khitab then allegedly used his right forearm to push § 87(2)(b) twice, allegedly making contact with the left side of her torso twice (**Allegation B**). PO Khitab allegedly stepped forward onto § 87(2)(b)'s left foot while pushing § 87(2)(b) allegedly causing swelling and bruising to her left foot (**Subsumed within Allegation B**). PO Brower then allegedly pushed § 87(2)(b) using both of his hands to make contact with § 87(2)(b)'s upper chest (**Allegation C**). The officers then left the scene without arresting or summoning any of the civilians.

§ 87(2)(b) and § 87(2)(b) immediately drove to the 77<sup>th</sup> Precinct stationhouse after the officers left the scene. During the car ride, § 87(2)(b) contacted the 77<sup>th</sup> Precinct Detective Squad via phone and spoke with Det. Joseph Hickey of the 77<sup>th</sup> Precinct Detective Squad. § 87(2)(b) complained to Det. Hickey that the officers refused to arrest § 87(2)(b) and Det. Hickey allegedly said, "What the shit do you want me to do about it?" (**Allegation D**).

There is no video footage of this incident. Video footage was obtained from a restaurant at 661 Washington Avenue, but the cameras did not show the incident.

### Mediation, Civil and Criminal Histories

This case was unsuitable for mediation due to § 87(2)(b)'s injury and stated intention to file a lawsuit in regards to the incident. As of March 3, 2016, § 87(2)(b) had not filed a notice of claim with the City of New York (BR 05). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

### Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (BR 06).

PO Khitab has been a member of the NYPD for three years and has been the subject of two prior CCRB complaints involving seven allegations, all of which were unsubstantiated. Five of PO Khitab's seven prior allegations were physical force allegations, including two push allegations; one chokehold allegation; one restriction of breathing allegation; and one blunt instrument as club allegation (See officer history).

PO Brower has been a member of the NYPD for one year and has been the subject of one prior CCRB complaint involving one allegation of an improper question, which was truncated as complainant unavailable. § 87(2)(g)

§ 87(2)(b) (See officer history).

### **Potential Issues**

Video footage was obtained from a restaurant at 661 Washington Avenue, but the cameras did not show the incident. Field work was conducted to the incident location, but there were no other security cameras present.

§ 87(2)(b) provided an unverified phone statement, but he refused to be interviewed in-person and refused sign a verification form (BR 07).

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

§ 87(2)(b) and § 87(2)(b) provided different descriptions for the subject officer of **Allegation C**. § 87(2)(b) described this officer as a white male in his early 30s with a medium build and short black hair. § 87(2)(b) described this officer as an approximately 23-25 year old white male with blond hair and a slim build. PO Paweska and PO Brower were the only white male officers on scene. PO Paweska more closely matches § 87(2)(b)'s description of the subject officer as a white male with blond hair while PO Brower more closely matches § 87(2)(b)'s description of the subject officer as a white male with brown hair. § 87(2)(b)'s officer description was determined to be more accurate because she wrote down the officers' names and shield numbers during the incident, and she stated that the officer who pushed § 87(2)(b) was PO Brower. § 87(2)(g)

§ 87(2)(b) alleged that she spoke with an unknown officer over the phone who spoke discourteously toward her. § 87(2)(b) stated that this officer provided his name and identified himself as a detective over the phone, but § 87(2)(b) did not recall the officer's name. § 87(2)(b) later spoke with an officer in plainclothes at the 77<sup>th</sup> Precinct stationhouse, and this officer identified himself by the same name as the officer who she spoke with over the phone. § 87(2)(b) described this officer as a white male standing approximately 5'6" tall with a stocky build, dark hair, and tattoos on both forearms. Det. Robert Lynch of the 77<sup>th</sup> Precinct was the only detective assigned to the 77<sup>th</sup> Precinct, but he was dressed in uniform during the incident. Det. Lynch witnessed § 87(2)(b) interact with an officer in plainclothes at the stationhouse, and Det. Lynch stated that this officer was a detective from the 77<sup>th</sup> Precinct Detective Squad. As per the 77<sup>th</sup> Precinct Detective Squad roll call, Det. Joseph Hickey and PO Anthony LaFemina of the 77<sup>th</sup> Precinct Detective Squad were the only white male officers on duty inside the 77<sup>th</sup> Precinct stationhouse at the time of the incident. Det. Hickey was interviewed at the CCRB on April 6, 2016, and he denied having any knowledge of the incident. However, Det. Hickey acknowledged that he had tattoos on both of his forearms, and he stated that no other officer in the 77<sup>th</sup> Precinct Detective Squad has tattoos. Det. Hickey matches § 87(2)(b)'s description of the subject officer as a white male with a heavy build and tattoos on both forearms. § 87(2)(g).

#### **Allegations not pleaded**

It is undisputed that § 87(2)(b) pointed § 87(2)(b) out to the officers and alleged that he stole her identity. The officers also prepared a stop and frisk report in accordance with correct police procedure. § 87(2)(g).

**Allegation A – Abuse of Authority: At Washington Avenue and Prospect Place in Brooklyn, Police Officer Umar Khitab threatened to arrest § 87(2)(b)**

According to all parties, PO Khitab; PO Malik; PO Brower; and PO Paweska arrived at Washington Avenue and Prospect Place at approximately the same time (BR 01-04 and BR 10-13). After stopping § 87(2)(b) the officers conducted numerous warrant checks to determine whether there was probable cause to arrest § 87(2)(b). The officers determined that they lacked probable cause and informed § 87(2)(b) that § 87(2)(b) was free to go. At that time, § 87(2)(b)'s friend, § 87(2)(b) § 87(2)(b) and her mother, § 87(2)(b) arrived on the scene, having previously been informed of the situation by § 87(2)(b) over the phone. § 87(2)(b) and § 87(2)(b) repeatedly argued with the officers about their decision to release § 87(2)(b) and § 87(2)(b) walked away from the scene of the incident during this dispute.

§ 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) ran toward § 87(2)(b) as he walked away. According to § 87(2)(b) PO Khitab told § 87(2)(b) to get in his patrol car while § 87(2)(b) chased him, and PO Khitab then allegedly told § 87(2)(b) that he would arrest her if she moved toward his police vehicle. § 87(2)(b) stated that PO Khitab said, "If you touch him, we're going to have to arrest you." § 87(2)(b) failed to mention this sequence of events during her interview. She alleged that PO Khitab immediately pushed her after § 87(2)(b) walked away from the scene, and she denied taking any action prior to this alleged push (Discussed in **Allegation B**).

According to the officers, § 87(2)(b) and § 87(2)(b) both ran after § 87(2)(b) as he walked away from the scene. The officers stated that both § 87(2)(b) and § 87(2)(b) threatened to assault § 87(2)(b) while pursuing him. PO Brower stated that he informed § 87(2)(b) and § 87(2)(b) that they could be arrested if they assaulted § 87(2)(b). PO Paweska claimed that he, and not PO Brower, made this comment. Neither § 87(2)(b) nor § 87(2)(b) alleged that PO Brower or PO Paweska made these comments. PO Brower did not hear any other officer threaten to arrest the civilians, and PO Paweska did not recall whether any other officer did so. PO Malik stated that no officer threatened to arrest § 87(2)(b) or § 87(2)(b) in any way during the incident. PO Khitab denied that he threatened to arrest § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

**Allegation B – Force: At Washington Avenue and Prospect Place in Brooklyn, Police Officer Umar Khitab used physical force against § 87(2)(b)**

**Allegation C – Force: At Washington Avenue and Prospect Place in Brooklyn, Police Officer Robert Brower used physical force against § 87(2)(b)**

While arguing with the officers about § 87(2)(b)'s release, § 87(2)(b) alleged that PO Khitab pushed her twice by making contact with her lower torso using his right forearm while she stood still and took no action. § 87(2)(b) stated that PO Khitab stepped on her

left foot in the process of pushing her, which caused swelling and bruising to her foot. According to § 87(2)(b) PO Khitab stood between § 87(2)(b) and § 87(2)(b) as § 87(2)(b) ran toward § 87(2)(b). § 87(2)(b) alleged that PO Khitab pushed § 87(2)(b) using his right forearm to make contact with § 87(2)(b)'s upper chest near her collar bone. § 87(2)(b) alleged that PO Khitab pushed § 87(2)(b) only once and that he exerted force against her continuously so that she was forced backward six feet until her back made contact with the wall of a nearby building. § 87(2)(b) alleged that PO Khitab stepped on § 87(2)(b)'s foot in the process of pushing her.

§ 87(2)(b) provided a photo of the alleged injury to her left foot, which was taken two days after the incident (BR 09). § 87(2)(b) claimed that she received medical treatment for her injured foot at the § 87(2)(b) in Brooklyn two days after the incident (BR 08). § 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

During her CCRB interview, § 87(2)(b) alleged that PO Brower pushed § 87(2)(b) by using both of his hands to make contact with § 87(2)(b)'s chest, and § 87(2)(b) stated that PO Brower did so immediately after she was pushed by Khitab. In a phone statement prior to her CCRB interview, § 87(2)(b) alleged that PO Malik and PO Paweska – not PO Brower – pushed § 87(2)(b) and § 87(2)(b) alleged that this occurred before she was pushed by PO Khitab. During her CCRB interview, § 87(2)(b) initially claimed that she ran toward § 87(2)(b) after PO Khitab pushed § 87(2)(b) at which point PO Brower pulled her backward by her right arm. § 87(2)(b) initially claimed that PO Brower did not use any other physical force against her besides pulling her backward. When asked directly about whether PO Brower pushed her in the manner described by § 87(2)(b), § 87(2)(b) then alleged that PO Brower did so immediately after he pulled her backward.

According to § 87(2)(b), § 87(2)(b) ran toward § 87(2)(b) and the officers stood between § 87(2)(b) and § 87(2)(b). § 87(2)(b) tried to move through the officers, and PO Khitab grabbed both of § 87(2)(b)'s arms and exerted force backward against her while § 87(2)(b) pushed forward against him. § 87(2)(b) alleged that PO Khitab pushed her backward so that she made contact with the wall of a building, and she stated that § 87(2)(b) pushed forward against PO Khitab during that entire period of time. § 87(2)(b) also noted that PO Khitab stepped on § 87(2)(b)'s foot while pushing her; however, § 87(2)(b) added that § 87(2)(b) had a pre-existing injury to her foot at the time of the incident and that her foot was already swollen at that time. § 87(2)(b) stated that § 87(2)(b) ran toward § 87(2)(b) after PO Khitab pushed her, and § 87(2)(b) stated that PO Brower grabbed § 87(2)(b)'s right arm at that time and pulled her backward. § 87(2)(b) did not recall seeing PO Brower push § 87(2)(b) using two hands to make contact with her chest.

PO Khitab denied pushing § 87(2)(b) in any way during the incident. PO Brower, PO Pawezka, and PO Malik stated that PO Khitab never took such an action. PO Brower stated that he did not make any physical contact with § 87(2)(b) during the incident, and all of the other officers denied that PO Brower did so. The officers acknowledged that they intervened between § 87(2)(b) and § 87(2)(b) when she pursued him, but they stated that they

quickly placed § 87(2)(b) in PO Khitab's patrol car and did not engage in any physical altercation with § 87(2)(b) or § 87(2)(b)

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegation B and Allegation C** be closed as **Unfounded**.

**Allegation D – Discourtesy: Over the phone, Detective Joseph Hickey spoke discourteously to § 87(2)(b)**

§ 87(2)(b) and § 87(2)(b) drove to the 77<sup>th</sup> Precinct stationhouse after the officers left the scene. During the car ride, § 87(2)(b) spoke with Det. Hickey over the phone, and she complained that the officers from the 77<sup>th</sup> Precinct failed to arrest § 87(2)(b). Det. Hickey allegedly said, "What the shit do you want me to do about it?"

Det. Hickey denied § 87(2)(b)'s allegation, and he denied interacting with § 87(2)(b) in any way during the incident. Sgt. Lucas, PO Mahabirsingh, and Det. Lynch saw the civilians in the stationhouse, but they did not witness the alleged discourtesy.

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegation D** be closed as **Unsubstantiated**.

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Squad:

|               |                 |       |       |
|---------------|-----------------|-------|-------|
| Investigator: | _____           | _____ | _____ |
|               | Signature       | Print | Date  |
| Squad Leader: | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |
| Reviewer:     | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |